

SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST
VIRGINIA

Proceeding: Count I merits disposition.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt
Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Memorandum Opinion and Order Granting Copper Summary Judgment on Count I Only

Filed January 12, 2026 — District ECF No. 55

Pending is Defendant Copper Kestrel Logistics, LLC's motion for partial summary judgment, District ECF No. 42. The motion addresses only Count I of Asterglen Freight Software, Inc.'s complaint, which seeks \$480,000 for an alleged breach of the parties' Pilot License. Asterglen opposes the motion at ECF No. 49, and Copper Kestrel has replied at ECF No. 52. Meridian Silt Holdings, LLC filed a limited response at ECF No. 50 concerning evidence shared with Count II.

The dispositive issue is narrow. Section 9.2 required written notice describing a material breach and a fifteen-calendar-day opportunity to cure before termination for that breach or recovery of breach damages. Asterglen declared immediate termination and demanded \$480,000 on July 22, 2024, without first allowing that opportunity. Disputed evidence about the scope of oral permission on July 8 does not alter the sequence. For the reasons below, the Court grants the motion and dismisses Count I with prejudice. Count II against Meridian and Copper Kestrel's counterclaim are not decided and remain pending.

Summary-judgment standard

Summary judgment is appropriate when the movant shows that no genuine dispute exists as to a fact material under the governing law and that the movant is entitled to judgment. The Court considers the cited materials, draws reasonable inferences for the nonmoving party, and does not weigh credibility. A factual disagreement does not preclude judgment if the disputed point cannot affect the legal result. Conversely, the Court may not resolve a genuine conflict that the controlling rule makes material.

Contract language is given its ordinary meaning and read as a whole. When the relevant text is unambiguous, the Court applies it as written. A party seeking a remedy subject to an agreed notice-and-cure condition must comply with that condition unless evidence supports a recognized excuse. General awareness of a disagreement is not automatically equivalent to the particular written notice and response period selected by the contracting parties. An assertion of futility requires evidence that performance of the condition would have been useless, not speculation about how the recipient might have responded.

Copper Kestrel assumes for its motion that Asterglen can prove activity outside written authorization and a material underlying breach. The Court adopts that assumption solely to decide the notice issue. It does not find which party's July 8 account is correct, whether Meridian acted with an improper purpose, or whether Copper Kestrel can prove its counterclaim. Those matters are unnecessary to the count-specific disposition.

Undisputed chronology

Asterglen and Copper Kestrel signed the Pilot License on April 15, 2024. Its schedule identified twelve terminals. Section 9.2 states that before a party terminates for material breach or seeks breach damages, it will provide written notice describing the breach and allow fifteen calendar days to cure. On June 3, Copper Kestrel proposed a change order for twenty-nine additional terminals. The proposal was not signed.

Asterglen's written response of June 10 established conditions for a controlled load test while commercial review continued. Copper Kestrel retained Meridian under a June 14 statement of work for integration and readiness tasks. By July 1, forty-one identifiers had been provisioned: the twelve from the executed license schedule and the twenty-nine proposed additions. The parties dispute whether activity associated with the additions remained within the testing conditions.

Representatives of all three entities participated in a July 8 videoconference. Their recollections of the permission given during that call differ. Asterglen completed an internal audit on July 18 and concluded that activity exceeded its authorization. The audit was not delivered as a Section 9.2 notice with a cure deadline. On July 22, Asterglen disabled a shared staging credential, declared immediate termination, and demanded \$480,000. Its communication gave Copper Kestrel zero days to cure. Meridian continued technical work through July 25.

Section 9.2 required the agreed sequence

Section 9.2 uses a chronological condition: written description of the asserted material breach and a fifteen-calendar-day cure opportunity must precede termination for that breach or a demand for breach damages. The provision serves practical functions. It identifies the claimed default, permits corrective action, and allows continuation of the agreement when correction occurs on time. Asterglen's July 22 communication invoked both covered remedies at the same moment it first formally asserted the breach.

The earlier writings do not satisfy the condition. The June 10 load-test instructions stated limits for then-planned activity, but they did not identify a completed material breach, demand a cure by a date fifteen days later, or state that termination and damages would follow if correction did not occur. The July 18 audit was internal and therefore provided Copper Kestrel no written notice or opportunity. Discussions concerning the unsigned proposal likewise did not perform the procedure specified in Section 9.2.

Asterglen argues that Copper Kestrel already knew the permanent license had not expanded beyond twelve terminals. Knowledge of the schedule does not establish notice of the particular default later found in the audit, nor does it supply the promised time to respond. The section required more than an ability to anticipate Asterglen's position. Because the relevant chronology is undisputed, no reasonable factfinder could conclude that the required written notice and cure interval occurred before the July 22 termination and demand.

The factual conflicts do not excuse noncompliance

The Court has considered the differing July 8 accounts. Copper Kestrel's operations representative understood Asterglen to permit continuation of current activity while paperwork remained open, subject to monitoring and no additions. Asterglen's corporate representative understood permission to cover only the controlled test under the June 10 conditions. Meridian's engineer recalls continuation of the current test and did not understand that statement as a permanent amendment. No recording or agreed transcript settles the issue.

That disagreement is genuine but not material to Count I's notice defect. If Asterglen's account is accepted in full and the activity constituted a material breach, Section 9.2 still required a later written description and fifteen-day opportunity before the remedies Asterglen selected. Indeed, differing understandings supplied an additional reason to state the asserted default and expected correction clearly. The Court therefore makes no finding about the words used, their scope, or any participant's credibility.

Asterglen's futility theory also lacks evidentiary support. A controlled exercise later reduced the configuration from forty-one identifiers to twelve within three business days. The work preserved completed shipment information, and a cached-route warning was corrected without preventing completion. The declarant acknowledged differences between the preserved environment and live July traffic, but the exercise still demonstrates technical feasibility. No evidence shows that Copper Kestrel would have refused a clear cure demand. Asterglen cannot establish futility merely by pointing to a response it never requested.

Effect and limits of the ruling

Count I seeks breach damages of \$480,000 from Copper Kestrel. Asterglen's demand combines asserted contract value and response-related costs, but each requested item arises from the contract theory pleaded in that count. Section 9.2 conditions the pursuit of breach damages on the notice-and-cure sequence. Because Asterglen did not perform that condition and has not produced evidence supporting excuse, Copper Kestrel is entitled to judgment on Count I.

This conclusion does not adjudicate Count II. Asterglen's interference claim against Meridian seeks \$360,000 and depends on elements not presented by Copper Kestrel's motion, including Meridian's knowledge and intent. Nor does the ruling adjudicate Copper Kestrel's \$120,000 counterclaim arising from the July 22 service disablement. Asterglen disputes causation, reasonableness, allocation, and liability on that claim. Those matters remain for further proceedings.

The Court recognizes that the remaining claims share communications, witnesses, and technical events with Count I. They include the June documents, the forty-one-identifier configuration, the disputed July 8 conference, the July 18 audit, and work continuing through July 25. Opposing monetary recoveries could also present a potential setoff. Nothing in this opinion selects among disputed testimony or fixes a fact beyond what is necessary to apply Section 9.2. The shared evidence and any offset will be considered, if necessary, in adjudicating the pending claims.

Order

For the stated reasons, it is ORDERED that Copper Kestrel Logistics, LLC's Motion for Partial Summary Judgment, District ECF No. 42, is GRANTED. Count I of Asterglen Freight Software, Inc.'s complaint, the contract claim requesting \$480,000 from Copper Kestrel, is DISMISSED WITH PREJUDICE.

It is further ORDERED that this disposition is confined to Count I. Count II against Meridian Silt Holdings, LLC remains pending. Copper Kestrel's counterclaim requesting \$120,000 also remains pending. The Court does not resolve the scope of the disputed July 8 permission, Meridian's intent, liability on the counterclaim, the amount of either remaining demand, or the availability and amount of a potential setoff.

The Clerk shall transmit a copy of this Memorandum Opinion and Order to counsel of record. The parties shall continue to comply with existing scheduling directives for the unresolved claims. Nothing in this Order alters the dates previously established for remaining pretrial submissions, and no party is relieved of an obligation concerning the claims left for decision.

SO ORDERED this 12th day of January, 2026.

BY THE COURT:

UNITED STATES DISTRICT COURT